

Mallu Shah v. State of U P and 4 Others

Allahabad High Court · Division Bench · 12 December 2022 · Writ - C No. 34952 of 2022 · **Writ disposed of; petitioner relegated to Clause 6.5; no disconnection for 2 months**

HEADNOTE

A consumer who challenges an electricity bill and seeks a writ quashing the bill or restraining disconnection is relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer applies under that clause, the Executive Engineer is to consider and decide it in accordance with law. For 2 months the licensee shall not disconnect. The Court does not examine the bill.

FACTUAL SUMMARY

Mallu Shah challenged an electricity bill. The Court treated the grievance as one against an electricity bill and pointed the petitioner to Clause 6.5 before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objection — relegation to Clause 6.5

HOLDING

A writ seeking quashing of an electricity bill and/or a restraint on disconnection is disposed of without examining the bill. The consumer has a remedy before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. For 2 months the respondent officers shall not disconnect.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging an electricity bill is disposed of without examining the bill; the consumer is pointed to Clause 6.5.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILL

Left to the Clause 6.5 authority.